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**U.S. Customs and
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Re. Enforce and Protect Act (“EAPA”) Case Number 7907; *Certain Mobile Access Equipment and Subassemblies Thereof From the People’s Republic of China: Countervailing Duty Order and Amended Final Affirmative Countervailing Duty Determination*, 86 Fed. Reg. 70,439 (Dep’t of Commerce Dec. 10, 2021); *Certain Mobile Access Equipment and Subassemblies Thereof From the People’s Republic of China: Antidumping Duty Order*, 87 Fed. Reg. 22,190 (Dep’t of Commerce Apr. 14, 2022); Sinoboom North America, LLC; 19 U.S.C. § 1517

Dear Counsel:

This is in response to the request for *de novo* administrative review of a determination of evasion dated June 30, 2025, made by the Trade Remedy Law Enforcement Directorate (“TRLED”), Office of Trade (“OT”), U.S. Customs and Border Protection (“CBP”), pursuant to 19 U.S.C. § 1517(c), EAPA Case Number 7907 (“June 30 Determination”).¹ The request for review, dated August 12, 2025, was submitted to CBP, OT, Regulations and Rulings (“RR”), by Polsinelli PC on behalf of Sinoboom North America, LLC (“Sinoboom NA” or “Importer”), pursuant to 19 U.S.C. § 1517(f) and 19 C.F.R. § 165.41(a). The Coalition for American Manufacturers of Mobile Access Equipment (“CAMMAE” or “Alleger”) filed a response to the request for review on August 27, 2025.

¹ See Notice of Determination as to Evasion, EAPA Case 7907 (June 30, 2025) (Public Version), *available at* <https://www.cbp.gov/document/publications/eapa-case-7907-sinoboom-north-america-llc-notice-determination-evasion-june> (last accessed Aug. 25, 2025).

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I. Background

Based on our review of the administrative record, we agree with the recitation of facts as set forth by the June 30 Determination. As such, we will not repeat the entire factual history herein.

On December 20, 2023, the CAMMAE, a coalition comprised of two domestic producers of mobile access equipment (“MAE”) and subassemblies, filed an EAPA allegation against Sinoboom NA. CBP acknowledged receipt of the allegation on June 4, 2024. On October 1, 2024, TRLED initiated a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015 (“TFTEA”), in response to the allegation of evasion.²

The CAMMAE alleged that Sinoboom NA imported MAEs into the United States that incorporated Chinese-origin subassemblies, which underwent minimal assembly by Sinoboom Poland Sp. z o.o. (“Sinoboom Poland”) in the Republic of Poland (“Poland”), and then falsely declared those imports as products of Poland. The CAMMAE alleged that the MAEs and subassemblies were in-scope merchandise subject to antidumping and countervailing duty orders (the “AD/CVD Orders”) under Case Nos. A-570-139 and C-570-140, and that Sinoboom NA had evaded the payment of antidumping and countervailing duties on these imports.³

The allegation of evasion pertained to the AD/CVD Orders issued by the U.S. Department of Commerce (“Commerce”) on imports of MAEs and subassemblies thereof from China. Commerce defined the scope of the AD/CVD Orders as follows:

The merchandise covered by this order consists of certain mobile access equipment, which consists primarily of boom lifts, scissor lifts, and material telehandlers, and subassemblies thereof. Mobile access equipment combines a mobile (self-propelled or towed) chassis, with a lifting device (*e.g.*, scissor arms, boom assemblies) for mechanically lifting persons, tools, and/or materials capable of reaching a working height of ten feet or more, and a coupler that provides an attachment point for the lifting device, in addition to other components. The scope of this order covers mobile access equipment and subassemblies thereof whether finished or unfinished, whether assembled or unassembled, and whether the equipment contains any additional features that provide for functions beyond the primary lifting function.

Subject merchandise includes, but is not limited to, the following subassemblies:

- Scissor arm assemblies, or scissor arm sections, for connection to chassis and platform assemblies. These assemblies include: (1) Pin assemblies that connect sections to form scissor arm assemblies, and (2) actuators that power the arm assemblies to extend and retract. These assemblies may or may not also include blocks

² See Notice of Initiation of Investigation and Interim Measures: EAPA Case Number 7907 (Oct. 1, 2024) (“Notice of Initiation”) (Public Version), *available at* <https://www.cbp.gov/document/publications/eapa-case-7907-sinoboom-north-america-llc-notice-initiation-investigation-and> (last accessed Aug. 25, 2025).

³ See *Certain Mobile Access Equipment and Subassemblies Thereof From the People’s Republic of China: Countervailing Duty Order and Amended Final Affirmative Countervailing Duty Determination*, 86 Fed. Reg. 70,439 (Dep’t of Commerce Dec. 10, 2021) (“CVD Order”); *Certain Mobile Access Equipment and Subassemblies Thereof From the People’s Republic of China: Antidumping Duty Order*, 87 Fed. Reg. 22,190 (Dep’t of Commerce Apr. 14, 2022) (“AD Order”).

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that allow sliding of end sections in relation to frame and platform, hydraulic hoses, electrical cables, and/or other components;

- boom assemblies, or boom sections, for connection to the boom turntable, or to the chassis assembly, or to a platform assembly or to a lifting device. Boom assemblies include telescoping sections where the smallest section (or tube) can be nested in the next larger section (or tube) and can slide out for extension and/or articulated sections joined by pins. These assemblies may or may not include pins, hydraulic cylinders, hydraulic hoses, electrical cables, and/or other components;

- chassis assemblies, for connection to scissor arm assemblies, or to boom assemblies, or to boom turntable assemblies. Chassis assemblies include: (1) Chassis frames, and/or (2) frame sections. Chassis assemblies may or may not include axles, wheel end components, steering cylinders, engine assembly, transmission, drive shafts, tires and wheels, crawler tracks and wheels, fuel tank, hydraulic oil tanks, battery assemblies, and/or other components;

- boom turntable assemblies, for connection to chassis assemblies, or to boom assemblies. Boom turntable assemblies include turntable frames. Boom turntable assemblies may or may not include engine assembly, slewing rings, fuel tank, hydraulic oil tank, battery assemblies, counterweights, hoods (enclosures), and/or other components.

Importation of any of these subassemblies, whether assembled or unassembled, constitutes unfinished mobile access equipment for the purposes of this order.

Processing of finished and unfinished mobile access equipment and subassemblies such as trimming, cutting, grinding, notching, punching, slitting, drilling, welding, joining, bolting, bending, beveling, riveting, minor fabrication, galvanizing, painting, coating, finishing, assembly, or any other processing either in the country of manufacture of the in-scope product or in a third country does not remove the product from the scope. Inclusion of other components not identified as comprising the finished or unfinished mobile access equipment does not remove the product from the scope.

The scope excludes forklifts, vertical mast lifts, mobile self-propelled cranes and motor vehicles that incorporate a scissor arm assembly or boom assembly. Forklifts are material handling vehicles with a working attachment, usually a fork, lifted along a vertical guide rail with the operator seated or standing on the chassis behind the vertical mast. Vertical mast lifts are person and material lifting vehicles with a working attachment, usually a platform, lifted along a vertical guide rail with an operator standing on the platform. Mobile self-propelled cranes are material handling vehicles with a boom attachment for lifting loads of tools or materials that are suspended on ropes, cables, and/or chains, and which contain winches mounted on or near the base of the boom with ropes, cables, and/or chains managed along the boom structure. The scope also excludes motor vehicles (defined as a vehicle driven or drawn by mechanical power and manufactured primarily for use on public streets, roads, and highways, but does not include a vehicle operated only on a rail line pursuant to 49

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U.S.C. 30102(a)(7)) that incorporate a scissor arm assembly or boom assembly. The scope further excludes vehicles driven or drawn by mechanical power operated only on a rail line that incorporate a scissor arm assembly or boom assembly. The scope also excludes: (1) Rail line vehicles, defined as vehicles with hi-rail gear or track wheels, and a fixed (non-telescopic) main boom, which perform operations on rail lines, such as laying rails, setting ties, or other rail maintenance jobs; and (2) certain rail line vehicle subassemblies, defined as chassis subassemblies and boom turntable subassemblies for rail line vehicles with a fixed (non-telescopic) main boom.

Certain mobile access equipment subject to this order is typically classifiable under subheadings 8427.10.8020, 8427.10.8030, 8427.10.8070, 8427.10.8095, 8427.20.8020, 8427.20.8090, 8427.90.0020 and 8427.90.0090 of the Harmonized Tariff Schedule of the United States (HTSUS). Parts of certain mobile access equipment are typically classifiable under subheading 8431.20.0000 of the HTSUS. While the HTSUS subheadings are provided for convenience and customs purposes only, the written description of the merchandise under order is dispositive.⁴

On October 1, 2024, in accordance with 19 C.F.R. § 165.24, CBP issued a Notice of Initiation to all parties to the investigation, stating that the investigation had begun on June 4, 2024, and notifying the parties of CBP's decision to take interim measures based upon reasonable suspicion that the Importer had entered covered merchandise into the customs territory of the United States through evasion.⁵ The entries subject to the investigation are all unliquidated entries of covered merchandise entered from June 4, 2023, through the pendency of the investigation.⁶

On June 30, 2025, TRLED found that there was substantial evidence that Sinoboom NA imported finished MAEs comprised of Chinese-origin subassemblies and subassembly components into the United States through Poland, resulting in evasion of the AD/CVD Orders.⁷ TRLED also determined that: (1) interim measures were imposed properly upon a finding of reasonable suspicion of evasion; (2) Sinoboom NA incorrectly relied on CBP's "Special Value" instructions because the scope of the AD/CVD Orders applied to both MAE subassemblies and finished MAE;⁸ and (3) counsel for Sinoboom Poland did not qualify for access to business confidential information ("BCI") under the Administrative Protective Order ("APO") because Sinoboom Poland was not a party to the investigation under 19 C.F.R. § 165.1.⁹

On August 12, 2025, Sinoboom NA timely filed a request for administrative review. On August 13, 2025, RR sent an email to all parties to the investigation, notifying them of the commencement of the administrative review process and the assignment of RR case number

⁴ 86 Fed. Reg. at 70,4142; 87 Fed. Reg. at 22,192–93.

⁵ See Notice of Initiation (Public Version), at 2.

⁶ See 19 C.F.R. § 165.2 ("Entries that may be the subject of an allegation made under § 165.11 or a request for an investigation under § 165.14 are those entries of allegedly covered merchandise made within one year before the receipt of an allegation under § 165.11 or of a request for an investigation under § 165.14.").

⁷ See generally June 30 Determination (Public Version).

⁸ In its Written Comments to TRLED, Sinoboom NA argued that CBP should have utilized the "Special Value" instructions, which would result in the assessment and application of AD/CVD duties to the value of the Chinese-origin subassemblies only. See Sinoboom NA's Written Arguments (May 30, 2025) (Public Version), at 18 (citing CBP's "Special Value" memorandum, available at https://www.cbp.gov/sites/default/files/2024-09/csms_18-000379_special_value_memo_attachment.pdf).

⁹ See generally *id.*

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H351459. On August 27, 2025, the CAMMAE timely submitted a response to Sinoboom NA's request for administrative review.

II. Law & Analysis

Section 517 of the Tariff Act of 1930 ("the Tariff Act"), as amended (19 U.S.C. § 1517), provides, "with respect to covered merchandise, the Commissioner shall make a determination, based on substantial evidence, with respect to whether such covered merchandise was entered into the customs territory of the United States through evasion."¹⁰ The term evasion is defined as:

Except as provided in subparagraph (B), the term "evasion" refers to entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.¹¹

Examples of evasion include, but are not limited to, misrepresentation of the merchandise's true country of origin (*e.g.*, through false country of origin markings on the product itself or false sales), false or incorrect shipping and entry documentation, or misreporting of the merchandise's physical characteristics.¹²

Additionally, covered merchandise is defined as "merchandise that is subject to a CVD order issued under section 706, Tariff Act of 1930, as amended (19 U.S.C. § 1671e), and/or an AD order issued under section 736, Tariff Act of 1930, as amended (19 U.S.C. § 1673e)."¹³ While "substantial evidence" is not defined by statute, the "substantial evidence" standard has been reviewed by the courts in relation to determinations by other agencies. "Substantial evidence requires more than a mere scintilla but is satisfied by something less than the weight of the evidence."¹⁴

Therefore, CBP must determine whether a party has entered merchandise that is subject to an AD or CVD order into the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act, that is material and false, or any omission that is material, that resulted in the reduction or avoidance of applicable cash deposits or antidumping or countervailing duties being collected on such merchandise. In doing so, CBP may apply adverse inferences where they are warranted.¹⁵ RR's determination as to evasion must be supported by substantial evidence.

¹⁰ 19 U.S.C. § 1517(c)(1).

¹¹ 19 U.S.C. § 1517(a)(5); *see also* 19 C.F.R. § 165.1.

¹² *See Investigation of Claims of Evasion of Antidumping and Countervailing Duties, Interim Regulations*, 81 Fed. Reg. 56,477, 56,478 (CBP Aug. 22, 2016).

¹³ 19 C.F.R. § 165.1.

¹⁴ *See Altex, Inc. v. United States*, 370 F.3d 1108, 1116 (Fed. Cir. 2004) (internal citations and quotation marks omitted).

¹⁵ *See* 19 C.F.R. § 165.6.

A. Sinoboom NA's Arguments

Sinoboom NA requests that we reverse the June 30 Determination, presenting five arguments in support of its request.

First, Sinoboom NA argues that TRLED improperly assessed duties on all finished MAE imported by Sinoboom NA from Sinoboom Poland, including MAE that did not contain Chinese-origin subassemblies, and therefore, was not subject to the AD/CVD Orders.¹⁶ Sinoboom NA argues that it provided ample evidence to “clearly trace the origin of the subassemblies used in each imported MAE,”¹⁷ and that in *Ikadan Systems United States v. United States*, 639 F. Supp. 3d 1339, 1354 (Ct. Int’l Trade 2023), the U.S. Court of International Trade (“CIT”) “did not hold that CBP is excused from the statutory requirement to limit application of an affirmative evasion determination to ‘entries’ of ‘covered merchandise’ in the first instance.”¹⁸ Sinoboom NA asserts that the June 30 Determination, which pertains to all of Sinoboom NA’s entries of finished MAE, amounts to an “impermissible application of adverse inferences{.}”¹⁹

Second, Sinoboom NA contests TRLED’s assessment of AD/CVD duties based on the full value of the finished MAE rather than being limited to the value of the Chinese-origin subassemblies only.²⁰ According to Sinoboom NA, TRLED: (1) improperly declined to consider the substantial transformation argument, which was “directly relevant to country of origin for purposes of Section 301, and Sinoboom NA disputes any application of 301 duties”; (2) mistakenly concluded that there was not a proper way to separate out the value of Chinese-origin subassemblies; and (3) wrongly interpreted the scope of the proposed “Special Value” instructions by claiming that such instructions only apply to merchandise that is partially covered by AD/CVD orders.²¹

Third, Sinoboom NA argues that CBP should adopt a certification process to allow Sinoboom NA to identify future entries of MAE that are not covered merchandise.²² Pointing to the certification process used by Commerce in circumvention proceedings, Sinoboom NA asserts that the proposed EAPA certification process would require Sinoboom NA “to maintain, as it already does, complete and detailed records for sourcing of materials, production, exportation, and importation of MAE to determine from such records whether any individual MAE shipped to the United States was produced without use of Chinese-origin subassemblies.”²³ Sinoboom NA claims that such a process “is a reasonable approach that is consistent with Commerce and CBP practice for administering AD/CVD Orders,”²⁴ and that it would be “unnecessarily burdensome for Sinoboom NA to present — and for CBP to review — complete, detailed documentation for every entry.”²⁵

¹⁶ See Sinoboom NA’s Request for Administrative Review (Aug. 12, 2025) (Public Version), at 7–15.

¹⁷ *Id.* at 8; see also *id.* at 9–15.

¹⁸ *Id.*

¹⁹ *Id.* at 15.

²⁰ See *id.* at 15–19.

²¹ *Id.* at 9 n.32, see also *id.* at 15–19, 22, 24–25.

²² See *id.* at 19–22.

²³ *Id.* at 21; see also *id.* at 20 (describing Commerce’s certification process in circumvention proceedings).

²⁴ *Id.* at 19.

²⁵ *Id.* at 21 (internal quotation marks omitted).

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Fourth, Sinoboom NA claims that TRLED erred in finding that the imposition of interim measures was authorized under the EAPA statute.²⁶ In particular, Sinoboom NA contends that CBP’s instruction to change the country of origin from Poland to China prior to the issuance of a final determination “contravene[d] its critical responsibility . . . to ensure the accuracy of entry summaries,” and subverted “the fundamental structure and design of the statute that firmly places the onus on U.S. importers to use reasonable care in entering . . . imported merchandise.”²⁷ Sinoboom NA also argues that the imposition of interim measures requiring the posting of cash deposits prior to the issuance of an affirmative evasion determination was premature and “unreasonably onerous and punitive in the absence of any final determination.”²⁸ According to Sinoboom NA, the general authority of CBP to require bonds does not “explicitly authorize” the posting of antidumping or countervailing duty cash deposits under interim measures on the basis of reasonable suspicion of evasion.²⁹

Fifth, Sinoboom NA argues that TRLED’s application of the APO procedures was unreasonable.³⁰ Sinoboom NA maintains that neither CBP’s regulations nor the APO Handbook supported TRLED’s refusal to allow Sinoboom NA’s counsel to access BCI while counsel simultaneously represented “its related manufacturer, Sinoboom Poland,” and that such denial “served no protective purpose[.]”³¹ Additionally, Sinoboom NA claims that TRLED unreasonably prohibited counsel for Sinoboom NA from discussing with Sinoboom Poland “information contained in CBP’s verification report of Sinoboom Poland — *i.e.*, information *directly generated by* Sinoboom Poland.”³²

For these reasons, Sinoboom NA requests that the June 30 Determination be reversed.

B. The CAMMAE’s Arguments

The CAMMAE requests that we affirm the June 30 Determination, providing five bases in support of its position.

First, the CAMMAE argues that CBP properly required deposits of AD/CVD duties on all of Sinoboom NA’s MAE imports from Poland.³³ The CAMMAE contends that TRLED already considered the record evidence and determined that Sinoboom NA did not provide “a feasible method” to delineate which MAE contained Chinese-origin content.³⁴ The CAMMAE also states that Sinoboom NA failed to recognize the record evidence demonstrating that a large portion of the MAE imported from Poland was comprised of Chinese-origin subassemblies and subassembly components, and that “[a]ny scheme to distinguish between Chinese and non-Chinese parts is not likely to be accurate or enforceable.”³⁵ The CAMMAE points to Sinoboom Poland’s acknowledgement “that Sinoboom China supplied it with materials inputs and that it further

²⁶ See *id.* at 22–25.

²⁷ *Id.* at 23.

²⁸ *Id.* (citing *Phoenix Metal Co., Ltd. v. United States*, Ct. No. 23-00048, 2024 WL 2891503, at *9 (Ct. Int’l. Trade, June 10, 2024)).

²⁹ Sinoboom NA’s Request for Administrative Review (Public Version), at 24.

³⁰ See *id.* at 26–30.

³¹ *Id.* at 26, 28.

³² *Id.* at 29 (emphasis in original).

³³ See The CAMMAE’s Response (Aug. 27, 2025) (Public Version), at 10–17.

³⁴ *Id.* at 10 (internal citation and quotation marks omitted); see also *id.* at 11–12, 16.

³⁵ *Id.* at 12.

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assembles subassemblies into complete MAE in Poland.”³⁶ According to the CAMMAE, assessing duties on all MAE imports is consistent with CBP practice and the methodology advanced by Sinoboom NA “is not likely feasible.”³⁷ Moreover, the CAMMAE argues that the assessment of duties on all of the imported MAE does not constitute an impermissible application of adverse inferences, and that CBP did not base its determination on adverse inferences.³⁸

Second, the CAMMAE asserts that CBP correctly calculated duties on the full value of the finished MAE and that Sinoboom NA’s strategies to identify and assess duties on the value of the Chinese-origin subassemblies within finished MAEs are neither consistent with CBP practice nor administrable.³⁹ The CAMMAE also states that CBP correctly concluded that a substantial transformation analysis or a referral to Commerce was not necessary because the scope language “explicitly includes subassemblies regardless of assembly state or further processing.”⁴⁰

Third, the CAMMAE challenges Sinoboom NA’s proposed certification process for future MAE entries.⁴¹ The CAMMAE argues that such a process would amount to an “end-run around providing the type of documentation needed to demonstrate whether MAEs shipped from Poland is subject to the Orders.”⁴² The CAMMAE contends that the burden should remain with Sinoboom NA to demonstrate that any products imported from Sinoboom Poland are not covered merchandise.⁴³

Fourth, the CAMMAE asserts that CBP’s imposition of interim measures requiring Sinoboom NA to post cash deposits for its imports of MAE was consistent with law and CBP’s broad statutory authority to require bonds or other security as deemed necessary for the protection of revenue.⁴⁴

Fifth, the CAMMAE asserts that CBP appropriately applied its APO procedures by requiring Sinoboom NA and Sinoboom Poland to be represented by separate counsel in order to access BCI under the APO.⁴⁵ The CAMMAE also argues that Sinoboom NA failed to show how this requirement prevented it from fully participating in the instant proceeding, and that the requirement was justified to protect BCI.⁴⁶

III. Administrative Review Analysis

Pursuant to 19 U.S.C. § 1517(f)(1) and 19 C.F.R. § 165.45, upon request for administrative review, RR will apply a *de novo* standard of review under the law, based solely upon the facts and circumstances on the administrative record in the proceeding. In making our determination, we reviewed the following materials: (1) the administrative record upon which the June 30

³⁶ *Id.* at 13 (internal citation and quotation marks omitted).

³⁷ *Id.* at 14; *see also id.* at 15–17.

³⁸ *See id.* at 16.

³⁹ *See id.* at 17–20.

⁴⁰ *Id.* at 18.

⁴¹ *See id.* at 20–22.

⁴² *Id.* at 21.

⁴³ *See id.* at 21–22.

⁴⁴ *See id.* at 22–23 (citing 19 U.S.C. § 1517; 19 U.S.C. § 1623).

⁴⁵ *See* The CAMMAE’s Response (Public Version), at 24–26.

⁴⁶ *See id.* at 9, 25–26.

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Determination was made; and (2) the timely and properly filed request for review and response thereto.

The purpose of this *de novo* review is to analyze the June 30 Determination and the accompanying administrative record to determine whether substantial evidence of evasion exists. As discussed below, there is substantial evidence that the MAE imported by Sinoboom NA is covered merchandise incorporating in-scope subassemblies subject to the AD/CVD Orders.

The outcome of this administrative review rests on whether the finished MAE that Sinoboom NA imported into the United States, which was assembled in Poland and incorporated certain Chinese-origin subassemblies, as well as subassemblies and other components of various origins (including Chinese-origin), falls within the scope of the AD/CVD Orders, and thus, constitutes covered merchandise under 19 U.S.C. § 1517. For the reasons outlined below, we find that there is substantial record evidence that Sinoboom NA entered covered merchandise into the United States in the form of finished MAE, which was assembled in Poland from Chinese-origin subassemblies; such acts constituted evasion, as discussed, *infra*.

A. There is substantial record evidence that the finished MAE imported into the United States by Sinoboom NA and exported by Sinoboom Poland is “covered merchandise.”

There is no dispute here that the products imported by Sinoboom NA from Sinoboom Poland were finished MAE assembled in Poland.⁴⁷ There is also no dispute that the finished MAE incorporated certain “subassemblies” manufactured in China. The dispute is as to whether the finished MAE imported by Sinoboom NA constitutes covered merchandise under the AD/CVD Orders.

As detailed below, the finished MAE imported by Sinoboom NA is covered merchandise subject to the AD/CVD Orders because the MAE contains in-scope subassemblies that remain in-scope merchandise despite further assembly or processing operations performed in a third country, such as Poland. The plain language of the scope clearly states that unfinished and finished MAE and subassemblies from China are subject merchandise under the AD/CVD Orders:

The merchandise covered by this order consists of *certain mobile access equipment, which consists primarily of boom lifts, scissor lifts, and material telehandlers, and subassemblies thereof*. Mobile access equipment combines a mobile (self-propelled or towed) chassis, with a lifting device (*e.g.*, scissor arms, boom assemblies) for mechanically lifting persons, tools, and/or materials capable of reaching a working height of ten feet or more, and a coupler that provides an attachment point for the lifting device, in addition to other components. *The scope of this order covers mobile access equipment and subassemblies thereof whether finished or unfinished, whether assembled or unassembled, and whether the equipment contains any additional features that provide for functions beyond the primary lifting function.*

⁴⁷ See, *e.g.*, Sinoboom NA’s RFI Response (Nov. 27, 2004) (Business Confidential Version), at Ex. 2 (detailing Sinoboom NA’s imports of finished MAE models [model numbers]; Sinoboom Poland’s Verification Exhibits (“VE”), at VE-1 (listing the product categories and models of MAE produced by Sinoboom Poland).

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Importation of any of these subassemblies, whether assembled or unassembled, constitutes unfinished mobile access equipment for the purposes of this order.⁴⁸

Additionally, the scope language provides a non-exhaustive list of subassemblies that are subject to the AD/CVD Orders.⁴⁹ For instance, the scope language specifically lists “chassis assemblies, for connection to scissor arm assemblies, or to boom assemblies, or to boom turntable assemblies,” “boom assemblies, or boom sections, for connection to the boom turntable, or to the chassis assembly, or to a platform assembly or to a lifting device,” and “boom turntable assemblies, for connection to chassis assemblies, or to boom assemblies.”⁵⁰

The administrative record shows that Sinoboom Poland operated as an assembly site for the finished MAE that Sinoboom NA imported into the United States.⁵¹ The record further demonstrates that those finished MAE contained Chinese-origin subassemblies.

In its written arguments submitted to TRLED, Sinoboom NA stated that the [product and model number], the [product and model number], and the [product and model number] contain “one or more of the three Chinese origin subassemblies listed,” including [assembly types].⁵² Additionally, the record demonstrates that Sinoboom Poland purchased [assembly type] from China to assemble finished MAE in Poland.⁵³ Further, during verification, TRLED found that the records showed that Sinoboom Poland purchased MAE subassemblies “such as [assembly types]” from China.⁵⁴

As discussed above, these subassemblies are listed specifically by the scope of the AD/CVD Orders.⁵⁵ Indeed, in its request for administrative review, Sinoboom NA openly acknowledged that it imported finished MAE during the period of investigation that “were produced using one or more Chinese-origin subassemblies{.}”⁵⁶

Very importantly, the scope language of the AD/CVD Orders states that third-country assembly or processing of subassemblies does not remove them from the scope:

Processing of finished and unfinished mobile access equipment and subassemblies such as trimming, cutting, grinding, notching, punching, slitting, drilling, welding, joining, bolting, bending, beveling, riveting, minor fabrication, galvanizing, painting, coating, finishing, *assembly, or any other processing* either in the country of manufacture of

⁴⁸ 86 Fed. Reg. at 70,441–42 (emphases added); 87 Fed. Reg. at 22,190–93 (emphases added).

⁴⁹ See 86 Fed. Reg. at 70,441–42; 87 Fed. Reg. at 22,190–93.

⁵⁰ See 86 Fed. Reg. at 70,441–42; 87 Fed. Reg. at 22,190–93.

⁵¹ See CBP’s Verification Report (May 30, 2025) (Business Confidential Version), at 3 (providing that, at verification, the General Manager of the facility stated that, “the Sinoboom Poland facility is ‘just an assembly and testing factory and does not manufacture any parts or do any painting or welding.’”).

⁵² See Sinoboom NA’s Written Arguments (Business Confidential Version), at 11.

⁵³ See Sinoboom Poland RFI Response (Business Confidential Version), at Ex. VI-05.

⁵⁴ June 30 Determination (Business Confidential Version), at 11 (citing CBP’s Verification Report (Business Confidential Version), at 8).

⁵⁵ See 86 Fed. Reg. at 70,441–42; 87 Fed. Reg. at 22,190–93.

⁵⁶ Sinoboom NA’s Request for Administrative Review (Public Version), at 1.

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the in-scope product *or in a third country does not remove the product from the scope*. Inclusion of other components not identified as comprising the finished or unfinished mobile access equipment does not remove the product from the scope.⁵⁷

Based on this language, any processing or assembly performed by Sinoboom Poland of in-scope Chinese subassemblies to manufacture finished MAE in Poland does not remove those subassemblies from the scope of the AD/CVD Orders. In other words, the Chinese-origin subassemblies, such as chassis assemblies, boom assemblies/sections, and boom turntable assemblies, that Sinoboom Poland used to produce its finished MAE remain in-scope and subject to the AD/CVD Orders even if they are imported into the United States as parts of finished MAEs. Likewise, MAE or subassemblies are subject to the Orders even if other components are added to them, as clearly stated in the last sentence quoted above.

Moreover, the scope language explains that finished MAE, such as the products imported into the United States by Sinoboom NA, “combine” several different types of subassemblies, which, themselves, are comprised of various types of subassembly components.⁵⁸ Therefore, per the plain language of the scope, *finished MAE* models are covered merchandise where they include in-scope Chinese-origin subassemblies, as is the case here. Accordingly, the finished MAE models that Sinoboom NA imported that incorporated Chinese-origin subassemblies are “covered merchandise” under 19 U.S.C. § 1517.

Sinoboom NA states that a substantial transformation analysis is directly relevant to determining the country of origin of the imported MAE for purposes of assessing Section 301 duties.⁵⁹ As an initial matter, Section 301 duties are not at issue here because 19 U.S.C. § 1517 pertains to the evasion of AD/CVD orders only. Further, Sinoboom NA’s focus on “country of origin” and “substantial transformation” of the subassemblies and components for purposes of marking, customs duties, Section 301 duties, or otherwise, is inapposite to the question presented here — whether Sinoboom NA entered covered merchandise into the United States.⁶⁰ It is well-settled law that the country of origin of a good from a customs law perspective is not the same as whether the good falls within the scope of an AD or CVD order with respect to a certain country.⁶¹ In addition, nothing in Commerce’s AD/CVD Orders requires that the ultimate country of origin of the covered merchandise, from a customs marking or other customs law perspective, be China; rather, the question is whether the merchandise is covered by the AD/CVD Orders, *as described by Commerce*. Here, the plain language of the AD/CVD Orders clearly states that certain MAE and subassemblies thereof, made in China, whether finished or unfinished, are covered, and remain covered, regardless of assembly or further processing in a third country such as Poland.

⁵⁷ 86 Fed. Reg. at 70,441–42 (emphases added); 87 Fed. Reg. at 22,190–93 (emphases added).

⁵⁸ 86 Fed. Reg. at 70,441–42; 87 Fed. Reg. at 22,190–93.

⁵⁹ Sinoboom NA’s Request for Administrative Review (Public Version), at, 25.

⁶⁰ *See id.* at 9, 16, 25.

⁶¹ *See, e.g., Aireko Constr., LLC v. United States*, 425 F. Supp. 1307, 1312 n.7 (Ct. Int’l Trade 2020) (acknowledging that country of origin differs in the AD/CVD versus customs marking contexts because “CBP makes country of origin determinations under a different authority than that by which Commerce determines country of origin for purposes of applying AD/CVD duties”) (citing 19 U.S.C. § 1304; *SunEdison, Inc. v. United States*, 179 F. Supp. 3d 1309, 1323 n.77 (Ct. Int’l Trade 2016) (finding CBP’s country of origin determinations to be “inapposite” to Commerce’s country of origin determinations)).

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Therefore, RR concludes that there is substantial evidence that the finished MAE models that were assembled in Poland from Chinese-origin subassemblies are covered by the scope of the AD/CVD Orders.

B. There is substantial record evidence that Sinoboom NA entered covered merchandise by evasion.

The record evidence shows that Sinoboom NA entered covered merchandise by means of material and false documents or electronically transmitted data or information, written statements, or material omissions that resulted in AD/CVD cash deposits not being applied with respect to the covered merchandise. Sinoboom NA incorrectly entered the merchandise at issue on type “01” consumption entries instead of on type “03” AD/CVD entries.⁶² As discussed above, the record evidence supports a conclusion that Sinoboom NA entered merchandise that was covered by the AD/CVD Orders and therefore it should have been entered as type “03.”⁶³ As such, it was false to enter the merchandise on type “01” entries, thereby representing the merchandise NOT to be covered by the AD/CVD Orders. These constitute false statements that are also material because the applicable cash deposits and antidumping and countervailing duties were not paid. Consequently, Sinoboom NA entered the merchandise through evasion.

C. Sinoboom NA’s other claims lack merit.

In its request for administrative review, Sinoboom NA raises five additional arguments, all of which lack merit. However, as an initial matter, we note that none of these arguments relates to whether there is substantial record evidence of evasion, which is the question RR is charged with addressing in an administrative review. Nevertheless, for the sake of completeness, RR provides its analysis below.

First, Sinoboom NA argues that duties should be assessed on only those entries of finished MAE that contained Chinese-origin subassemblies, and that the record contains “uncontested evidence” allowing CBP to identify such entries.⁶⁴ We disagree. Sinoboom NA’s proposed identification and tracking exercise would necessitate that CBP review each of Sinoboom NA’s entries within the relevant timeframe to determine which specific entries contain covered merchandise. The issue of entry-by-entry duty assignment is not the proper subject of an EAPA administrative review as to whether substantial evidence of evasion exists. As the CIT has recognized, CBP is not required to conduct an entry-specific review to determine whether evasion has occurred within the meaning of the EAPA statute.⁶⁵ Rather, CBP must determine whether there is substantial evidence on the administrative record, as a whole, that evasion has occurred.⁶⁶ As detailed above, a review of the record establishes that Sinoboom NA imported covered merchandise.⁶⁷ Even if Sinoboom NA had provided sufficient evidence to demonstrate that some of its entries did not contain covered merchandise – and it has not, as described below – the CIT

⁶² See, e.g., Sinoboom NA’s RFI Response (Business Confidential Version), at Exs. 16-8 and 16-9.

⁶³ Imports that are covered by AD/CVD orders are required to be entered as type “03” entries; entries declared as type “01” are not subject to payment of antidumping or countervailing duties. See CBP Entry Summary Form 7501 and Instructions and the ACE Entry Summary Business Rules and Procedure Document, *available at* <https://www.cbp.gov/trade/programs-administration/entry-summary/cbp-form-7501> (last accessed Oct. 31, 2025).

⁶⁴ Sinoboom NA’s Request for Administrative Review (Public Version), at 9.

⁶⁵ See *Ikadan*, 639 F. Supp. 3d at 1354.

⁶⁶ See 19 U.S.C. § 1517(f)(1); 19 C.F.R. § 165.45.

⁶⁷ See Sinoboom NA’s RFI Response (Business Confidential Version), at 8.

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has explained that the proper recourse to challenge CBP's assignment of duties on an entry-specific basis is via a protest pursuant to 19 U.S.C. § 1514, after review of the determination of evasion is completed.⁶⁸

Moreover, Sinoboom NA's suggested approach is not feasible based on the record evidence. As TRLED correctly found, the record evidence does not contain sufficient information to allow for the tracing mechanism that Sinoboom NA endorses.⁶⁹ In its RFI response, Sinoboom Poland (*i.e.*, the producer of the finished MAE) admitted that it "lacks records that would enable it to trace the consumption of material inputs back to the specific purchases of such material inputs used to manufacture the MAE shipped," and instead, provided "the most representative material inputs" for those MAE models.⁷⁰ Thus, even Sinoboom Poland could not trace which specific inputs it used to assemble each of the finished products it sold. Further, even Sinoboom Poland's sampling of the most representative material inputs in its MAE reveals that certain subassemblies, including a [assembly type] ("[assembly type and product number]"), were, in fact, produced in China, rendering them covered merchandise under the AD/CVD Orders.⁷¹

What Sinoboom NA's argument essentially ignores is that the inclusion of non-Chinese subassemblies does not remove the finished MAE from the scope of the AD/CVD orders if it also incorporates Chinese-origin subassemblies.⁷² The assembly operations performed in Poland are not complex.⁷³ And, Sinoboom Poland admits that it cannot trace all of its inputs.⁷⁴ Accordingly, for purposes of these AD/CVD Orders, as to the finished MAE imported into the United States, because there is no feasible way to discern which finished MAE incorporated Chinese subassemblies, it is not at all clear whether the products that do not contain a Chinese subassembly are not in-scope merchandise. Sinoboom would need to provide thorough and verifiable documentation, for the entire product, to demonstrate this, which it was unable to do.

Second, Sinoboom NA contends that CBP should determine AD/CVD duties owed based on the value of the Chinese-origin subassemblies and subassembly components only, and not on the value of the complete, finished MAE.⁷⁵ As an initial matter, we point out that the normal process for CBP is to collect duties based on the value of the entire finished product, in the condition as imported.⁷⁶ For purposes of collecting duties for products subject to an AD or CVD order, Commerce provides instructions to CBP as to how the duties should be determined. As to these AD/CVD Orders, the record does not contain special instructions from Commerce.

Furthermore, similar to the argument above, Sinoboom NA's proposal would require CBP to conduct an entry-specific analysis, which is neither the proper subject of an EAPA administrative

⁶⁸ See *Ikadan*, 639 F. Supp. 3d at 1354. Additionally, requiring Sinoboom NA to protest CBP's assignment of duties on an entry-by-entry basis does not amount to the application of an adverse inference under 19 C.F.R. § 165.6.

⁶⁹ June 30 Determination (Public Version), at 13.

⁷⁰ See Sinoboom Poland's RFI Response (Part II) (Dec. 10, 2024) (Business Confidential Version), at 8, Ex. VI-05.

⁷¹ See *id.* at Ex. VI-05.

⁷² See CBP's Verification Report (Business Confidential Version), at 4.

⁷³ See *id.* at 3; see also *id.* at 5 (noting that Sinoboom Poland's facility "does not have the machinery or personnel to manufacture any raw materials or subassemblies for the MAE" and that "the facility has no capabilities to weld any machinery parts or ventilation needed for painting machines.").

⁷⁴ See Sinoboom Poland's RFI Response (Part II) (Public Version) at 8.

⁷⁵ See Sinoboom NA's Request for Administrative Review (Public Version), at 15–19.

⁷⁶ See June 30 Determination (Public Version), at 13.

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review nor necessary based on the record evidence.⁷⁷ Again, the proper recourse to challenge CBP's assignment of duties on an entry-specific basis is to file a protest pursuant to 19 U.S.C. § 1514, after review of the determination of evasion is completed.⁷⁸

Third, Sinoboom NA recommends that CBP adopt a certification process for Sinoboom NA to identify future entries of finished MAE that do not contain covered merchandise because requiring Sinoboom NA to provide “complete, detailed documentation for every entry” would be “unnecessarily burdensome{.}”⁷⁹ Sinoboom NA has a statutory responsibility, as the importer of record, to provide CBP with entry documentation containing true and accurate information that will allow CBP to properly assess duties (among other things).⁸⁰ Moreover, CBP's regulations already require the importer of record to attest that the entry summary information is “true and correct to the best of his knowledge.”⁸¹ Indeed, Sinoboom NA acknowledges that it is already required to provide the information included in any proposed certification to CBP.⁸² In the context of these Orders and this review, RR does not have the authority to impose a certification system beyond what is already required.

Fourth, Sinoboom NA asserts that TRLED erred by finding that the imposition of interim measures was authorized under the EAPA statute and that requiring Sinoboom NA to post cash deposits prior to the issuance of an affirmative evasion determination was premature and punitive.⁸³ Contrary to Sinoboom NA's assertion, 19 U.S.C. § 1517 specifically provides that no later than 90 days *after the initiation of an investigation*, CBP may impose interim measures upon reasonable suspicion that covered merchandise was entered into the customs territory of the United States through evasion.⁸⁴ Further, the CIT has held that 19 U.S.C. § 1517 “empower{s} the U.S. Government and its agencies with the tools to *identify proactively and thwart evasion at earlier stages* to improve enforcement of U.S. trade laws, *including by ensuring full collection of AD and CVD duties and, thereby, preventing a loss in revenue.*”⁸⁵ As such, we agree with TRLED that CBP has discretion to determine the appropriate manner by which to protect the revenue of the United States, including by requiring AD/CVD cash deposits for entries subject to this EAPA investigation.

Fifth, Sinoboom NA erroneously contends that TRLED's application of APO procedures was unreasonable and “served no protective purpose” because: (1) counsel for Sinoboom NA was denied access to BCI while it simultaneously represented Sinoboom Poland, which “effectively forc{ed}” Sinoboom Poland “to retain separate counsels”; and (2) counsel for Sinoboom NA could

⁷⁷ See *supra* at 12–13.

⁷⁸ See *Ikadan*, 639 F. Supp. 3d at 1354.

⁷⁹ Sinoboom NA's Request for Administrative Review (Public Version), at 21.

⁸⁰ See 19 U.S.C. § 1517(a)(5)(A) (defining “evasion” as entering covered merchandise into the United States by means of any document or electronically transmitted data or information or act that is material and false, or any omission that is material, *that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise*”); 19 U.S.C. § 1484(a)(1)(B) (requiring importers of record, on entry, to provide the necessary information to allow CBP to properly assess duties on the merchandise, collect accurate statistics with respect to the merchandise, and determine whether any other applicable requirement of law is met).

⁸¹ See 19 C.F.R. § 141.61(2).

⁸² See Sinoboom NA's Request for Administrative Review (Public Version), at 21.

⁸³ See *id.* at 24.

⁸⁴ See 19 U.S.C. § 1517(e).

⁸⁵ *Diamond Tools Tech. LLC v. United States*, 545 F. Supp. 3d 1324, 1351 (Ct. Int'l Trade 2021) (“*Diamond Tools P*”) (emphasis added).

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not discuss BCI in CBP's verification report with Sinoboom Poland, the party that generated the BCI.⁸⁶

With respect to the first part of this claim, as TRLED explained, “{a} firm may represent both importers and manufacturers simultaneously; however, under EAPA APO procedures, *the same individual attorney(s)* would be unable to access both an importer account and a manufacturer account in the EAPA portal.”⁸⁷ Thus, TRLED did not require Sinoboom Poland to retain an entirely separate law firm, contrary to Sinoboom NA's suggestion.

As for the second part of this claim, we find that TRLED correctly concluded that “Sinoboom Poland was not {a} party to the investigation as defined by 19 C.F.R. § 165.1; therefore, the attorney representing it would not qualify as an eligible applicant for APO access.”⁸⁸ Accordingly, counsel for Sinoboom Poland may not access BCI that Sinoboom Poland did not generate. Further, counsel authorized to access BCI under the APO in an EAPA proceeding may not disseminate BCI outside of those recipients to whom CBP has granted BCI access under the APO.⁸⁹ Importantly, these APO procedures (and the underlying goal to protect BCI) also apply to documents *generated by CBP*.⁹⁰ In this EAPA investigation, CBP generated a verification report and accompanying exhibits, all of which contain BCI as well as CBP's analysis and conclusions thereon. Indeed, as 19 C.F.R. § 165.25(c) explicitly provides, CBP's verification exhibits “generally contain information compiled and verified by CBP at CBP's discretion during the verification.”⁹¹ Put another way, BCI contained in CBP's verification report and accompanying exhibits *is generated by and is the responsibility of CBP to protect and disseminate appropriately*. Therefore, such BCI cannot be disseminated outside of those parties authorized to access BCI in the EAPA proceeding; Sinoboom Poland was not authorized to access BCI (other than the specific BCI that it generated).

⁸⁶ Sinoboom NA's Request for Administrative Review (Public Version), at 26.

⁸⁷ June 30 Determination (Public Version), at 14 (emphasis added). The limitations on portal access act as an ethical wall and are designed to protect against unauthorized disclosures of BCI to unauthorized recipients, such as manufacturers, which do not qualify as parties to the investigation under 19 C.F.R. § 165.1.

⁸⁸ *Id.* at 14.

⁸⁹ See generally APO Handbook, available at <https://www.cbp.gov/document/user-documentation/administrative-protective-order-apo-handbook> (last accessed Oct. 7, 2025).

⁹⁰ See *id.* at 2 (“This handbook is intended to assist in the protection of business confidential (BC) information submitted to or generated by U.S. Customs and Border Protection (CBP) during the course of Enforce and Protect Act of 2015 (EAPA) proceedings.” (emphasis added)).

⁹¹ 19 C.F.R. § 165.25(c).

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IV. Decision

Based upon our *de novo* review of the administrative record in this case, including the request for administrative review and response thereto, the June 30, 2025 Determination of evasion under 19 U.S.C. § 1517(c) is **AFFIRMED**.

This decision does not preclude CBP or other agencies from pursuing additional enforcement actions or penalties. Pursuant to 19 C.F.R. § 165.46(a), this final administrative determination is subject to judicial review under section 421 of TFTEA.

Sincerely,

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Approved by:

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